

24 February 2020

Bow River Village Phase 3, 1-4 Hancock Road

In the London Borough of Tower Hamlets (LLDC)

planning application no. 19/00477/FUL

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Demolition of all existing structures and redevelopment of the site to provide: 435 dwellings; 2,750 sq.m. of flexible commercial space; 901 sq.m. of flexible commercial/community floorspace; and 106 sq.m. flexible retail, in buildings ranging up to 26 storeys together with ancillary management and residents' facilities, plant and refuse storage areas, car and cycle parking, public realm and other associated works.

The applicant

The applicant is **Southern Housing Group** and the architect is **Karakusevic Carson Architects**.

Strategic issues summary

Principle of development: The residential-led mixed use scheme within the Olympic Legacy Opportunity Area is strongly supported (paragraphs 14-16).

Affordable housing: 50% by habitable room, with a 51%:49% affordable rent-intermediate tenure mix, is strongly supported and would qualify for the Fast Track Route subject to LLDC's approval of the tenure mix (paragraphs 18-22).

Heritage and urban design: The principle of tall buildings and high density development is supported taking into account the opportunity area location, the existing and emerging context of tall buildings, high residential quality and less than substantial harm to a heritage asset, which would be outweighed by the expected public benefits. However, the scheme would benefit from variation in heights, which should be explored further. (paragraphs 23-36).

Environment: Further information is required on the energy strategy and the SuDS measures revised as recommended (paragraphs 37-42).

Transport: The submission of Stage 1 Road Safety Audit, confirmation of TfL Structures approval and the securing of various transport-related plans via planning conditions or the S106 are required (paragraphs 43-49).

Recommendation

That London Legacy Development Corporation be advised that whilst the principle of development is supported the application does not yet fully comply with the London Plan and Mayor's intend to publish London Plan for the reasons set out in paragraph 53 of this report. However, the resolution of these issues could lead to the application becoming compliant with the London Plan and Mayor's intend to publish London Plan.

Context

1 On 14 January 2020, the Mayor of London received documents from London Legacy Development Corporation notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor has until 24 February 2020 to provide the Corporation with a statement setting out whether he considers that the application complies with the London Plan and draft London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A, 1B and 1C of the Mayor of London Order 2008:

- **Category 1A:** *“Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.”*
- **Category 1B:** *“Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings—(c) outside Central London and with a total floorspace of more than 15,000 square metres.”*
- **Category 1C:** *“Development which comprises or includes the erection of a building of (c) more than 30 metres high and is outside the City of London.”*

3 Once London Legacy Development Corporation has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal or allow the Corporation to determine it itself.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) Regulations 2011 has been taken into account in the consideration of this case.

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 The application site is approximately 1.05 hectares in size and is bounded by the A12 to the west, the River Lea to the north and east and to the south by a mixed-use development referred to as Bow River Village Phase 2. The site is within the Southern Olympic Fringe sub-area of the Olympic Legacy Supplementary Planning Guidance (OLSPG) and is designated as an 'Area of Change'. It also forms part of Site Allocation SA4.1 Bromley-by-Bow in the LLDC Local Plan, which is detailed in the Bromley by Bow SPD. Ideal Furniture, which is a furniture manufacturer and importer, and Calor Gas distribution are currently operating on the site; however, it is not designated industrial land.

7 The site does not lie within a conservation area nor does it contain any listed buildings; however, it is located near to Three Mills Conservation Area (with its cluster of listed buildings) and Sugar House Land Conservation Area. The Grade I Listed Tide Mill (also known as House Mill) and the Grade II listed Offices Opposite Clock Mill and the Clock Mill are listed assets within the Three Mills Conservation Area. In addition, there

are listed assets on Bow Road to the north west of the site, including the Grade II* listed Church of St. Mary Stratford Bow.

8 The A12 forms part of the Transport for London Road Network (TLRN) and the nearest part of the Strategic Road Network (SRN) is Stratford High Street to the north of the site. Cycle Superhighway 2 runs west-east on Stratford High Street. Bromley-by-Bow London Underground station is approximately 500 metres to the south on the western side of the A12 and provides access to London Underground services on the District and Hammersmith & City lines. Bow Docklands Light Railway station is approximately 600 metres to the west of the site. There are four bus services available within 400 metres. It is estimated that the site records a public transport accessibility level (PTAL) of 5 to 6a, on a scale of 0-6 where 6 is excellent.

Details of the proposal

9 Southern Housing—a registered social housing provider and GLA Strategic Partner—proposes to redevelop the site to provide a residential-led development, involving the erection of 3 buildings ranging in height from 2 to 26 storeys, comprising:

- 435 new residential units;
- 2,750 sq.m. of flexible B1 floorspace;
- 901 sq.m. of flexible floorspace (B1/D1);
- 106 sq.m. flexible retail floorspace;
- car and cycle parking; and,
- associated public realm and highway improvements.

Case history

10 The site formed part of the outline component of a hybrid planning application, GLA reference number PDU/2861/ (LPA ref. PA/11/02423) for 741 residential units (219 detailed and 522 in outline) and 10,527 sq.m. commercial floorspace, which was granted planning permission in September 2012 with 35% affordable housing. This phase of the scheme was identified to deliver 133 units and a car showroom. A reserved matters application was submitted in July 2016, and approved, for the delivery of 112 units in what is referred to as Phase 2. The detailed element (Phase 1) has been completed and Phase 2 is under construction. The timescales for the submission of reserved matters applications to deliver further elements of the outline permission have expired.

11 More recently, GLA officers provided pre-application advice on this scheme on 8 January 2019, covering strategic issues with respect to: principle of development, urban design, housing, affordable housing, inclusive access, sustainable development/climate change and transport. The pre-application advice note issued by the GLA indicated officers' support in strategic planning terms. Given the strategic priority for the retention of London's industrial capacity and provision of affordable workspace and low-cost office space, the exploration of opportunities to provide these types of commercial floorspace was encouraged by GLA officers. Additionally, any future planning application needed to address the issues raised in relation to urban design, inclusive access, children's play space, sustainable development/climate change mitigation and transportation.

Strategic planning issues and relevant policies and guidance

8 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area comprises the London Legacy Development Corporation Local Plan (2015-2031) and, the London Plan 2016 (Consolidated with Alterations since 2011).

12 The relevant issues and corresponding policies are as follows:

- Opportunity Areas *London Plan; Olympic Legacy SPG;*
- Employment land *London Plan; Land for Industry and Transport SPG;*
- Housing/Affordable housing *London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG; Shaping Neighbourhoods: Character and Context SPG; Affordable Housing and Viability SPG;*
- Urban design *London Plan; Shaping Neighbourhoods: Character and Context SPG; Housing SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG;*
- Heritage *London Plan;*
- Inclusive design *London Plan; Accessible London: Achieving an Inclusive Environment SPG;*
- Environment *London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;*
- Transport *London Plan; Mayor's Transport Strategy.*

13 The following are relevant material considerations:

- the National Planning Policy Framework and National Planning Practice Guidance;
- The London Plan – Intend to publish version (December 2019), which should be considered on the basis explained in the NPPF; and,
- Bromley-By-Bow SPD (2017).

Principle of development

14 The London Plan and the Mayor's intend to publish London Plan both identify the optimisation of land as a key part of the strategy for delivering additional homes in London. London Plan Policy 2.13 and Policy SD1 of the Mayor's intend to publish London Plan identify Opportunity Areas as one of the focal points for intensification. The application site falls within the Olympic Legacy Opportunity Area, which is identified in the Mayor's intend to publish London Plan as having an indicative employment capacity of 65,000 jobs and a minimum of 39,000 new homes.

15 The site is also non-designated industrial land. Policy E7C of the Mayor's intend to publish London Plan sets out the below scenarios where mixed-use or residential developments on non-designated industrial sites should be supported:

- there is no reasonable prospect of the site being used for the industrial and related purposes set out in Part A of Policy E4 Land for industry, logistics and services to support London's economic function; or,
- it has been allocated in an adopted local development plan document for residential or mixed-use development; or,
- industrial, storage or distribution floorspace is provided as part of mixed-use intensification.

16 Locally, as stated earlier in this report, the site forms part of LLDC Local Plan Site Allocation SA4.1, which has been identified for comprehensive mixed-use development. The proposal is broadly in line with the land uses proposed within this site allocation, and as such the redevelopment of this non-designated industrial site is acceptable in line with Policy E7 of the intend to publish London Plan. It is also noted that the site was included within the outline element of the 2012 hybrid planning permission for comprehensive mixed use development. The detailed element and Phase 2 (through reserved matters application) have been implemented. The proposed scheme would deliver new homes and commercial units, including the potential for light industrial floorspace within the flexible commercial uses, and is therefore strongly supported in strategic terms given its optimisation of land use for housing delivery in line with London Plan Policy 2.13 and 3.3 and Policies SD1, E7C and H1 and objective GG2 of the Mayor's intend to publish London Plan.

Housing

17 London Plan Policy 3.3, in seeking to increase the supply of housing in London, sets borough housing targets, and in Table 3.1 puts the minimum annual monitoring target for the London Legacy Development Corporation (LLDC) at 1,471 additional homes per year between 2015 and 2025. Under Policy H1, Table 4.1, of the Mayor's intend to publish London Plan, a ten-year target of 21,540 homes is set for the LLDC. The scheme would deliver 435 new homes, representing uplift of 302 units on the number of units identified for this phase in the outline element of the original hybrid application. This total would contribute positively to the above targets and is strongly supported. The proposed housing mix is set out below in Table 1.

Table 1: Proposed housing mix

tenure	1Bed	2Bed	3Bed	total units	total hr	hr by %
London Affordable Rent	27	35	30	92	309	50%
London Living Rent	12	8	-	20	48	
Shared Ownership	45	54	-	99	252	
Private	68	152	4	224	608	50%
total	152	249	34	435	1,217	100%

Affordable housing

18 London Plan Policies 3.11 and 3.12 and Policy H4 of the Mayor's intend to publish London Plan seek to maximise the delivery of affordable housing, with the Mayor setting a strategic target of 50%. Policy H6 of the Mayor's intend to publish London Plan provides a flexibly prescribed tenure mix of: 30% social rent/London Affordable Rent; 30% intermediate products; and, 40% to be determined by the relevant borough as low cost rented homes or intermediate products. Locally, the LLDC has set a borough-wide target of 35% and expects a tenure mix of 60% affordable/social rent and 40% intermediate.

19 Policy H5 of the Mayor's intend to publish London Plan and the Mayor's Affordable Housing and Viability SPG set out a 'threshold approach', whereby schemes meeting or exceeding a specific percentage of affordable housing by habitable room, without public subsidy, and other criteria such as tenure mix are eligible for the Fast Track Route (FTR). Such applications are not required to submit viability information to the GLA and are also exempted from a late stage review mechanism. On non-designated industrial land, where there is any loss of industrial capacity, a minimum of 50% affordable housing by habitable room, without public subsidy, must be provided to be eligible for the FTR.

20 The scheme would deliver 50% affordable housing by habitable rooms (without public grant), with a 51%:49% affordable rent-intermediate tenure split by habitable room. This is strongly supported in response to the strategic policy context. Given the proposed level of affordable housing and tenure split, the scheme would qualify for the Fast Track Route in accordance with Policy H5 of the Mayor's intend to publish London Plan, subject to the LLDC's acceptance of the tenure mix. An early stage review mechanism will be required.

21 The London Living Rent units and Shared Ownership units should be provided in line with the household income cap and affordability eligibility criteria for intermediate products set out in the London Plan, Mayor's intend to publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance. It is expected that intermediate units are made available to a range of maximum household income thresholds below the maximum £90k or £60k income cap threshold referred to above.

22 Lastly, a draft of the Section 106 agreement must be provided to the GLA for review as soon as one is available to ensure that the review mechanism and affordability have been secured and the eligibility criteria for the intermediate units comply with the London Plan, Mayor's intend to publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance.

Heritage and urban design

23 The scheme has been subject to design review discussions in accordance with Policy D4 of the Mayor's intend to publish London Plan. This is welcomed.

Heritage

24 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the tests for dealing with heritage assets in planning decisions. Regarding listed buildings, all planning decisions should *"have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it*

possesses". The NPPF states that when considering the impact of the proposal on the significance of a designated heritage asset, great weight should be given to the asset's conservation and the more important the asset, the greater the weight should be. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting.

25 As indicated in paragraph 7 of this report, the site is in proximity of heritage assets, including conservation areas and listed buildings. The applicant has submitted a Heritage Townscape and Visual Impact Assessment, which consider the proposal's impact on heritage assets.

26 Views are provided from various locations, including from within the Three Mills Conservation Area and along Bow Road, which is populated with heritage assets including the Grade II* listed Church of St. Mary Stratford Bow, Grade II Roman Catholic Church of Our Lady and St Catherine of Siena and Grade II no.163 Bow Road. Regarding the Three Mills Conservation Area and its listed buildings, the proposed development would be visible from within the conservation area and would increase the amount of development visible in the background. However, the view from this location within the conservation area is already characterised by modern buildings of considerable scale that is expected to increase given the emerging context in the area. Similarly, the views from Bow Road already have the presence of the modern, 35-storey Sky View Tower in the background. It is acknowledged that the proposed development would be prominent in longer views; but in terms of its impact on the setting of the listed Churches, the proposal would sit in the background to the right of the Grade II* listed Church of St. Mary Stratford Bow and both the heritage asset and proposal would be partially obscured by trees in the church yard. Any harm to this asset would be less than substantial harm.

27 The NPPF at paragraph 196 makes clear that where a development proposal will lead to less than substantial harm to the significance of a designated heritage asset, this harm should be weighed against the public benefits of the proposal including, where appropriate, securing its optimum viable use. Having analysed the applicant's assessments and having regard to the statutory duty in respect of listed buildings in the Planning (Listed Buildings and Conservation Areas) Act 1990, and the relevant paragraphs in the NPPF in relation to heritage assets, GLA officers consider that any harm caused to nearby heritage assets by the proposal would only be to the Church of St. Mary Stratford Bow. This harm would be less than substantial and clearly outweighed by the public benefits of the scheme, namely the provision of 50% affordable housing units and high quality employment floorspace. The proposal would therefore address the requirements of the policies set out above.

Density

28 The net residential density for the proposed development is approximately 1,267 habitable rooms and 452 units per hectare respectively, which exceeds the guidance range of 650-1100 habitable rooms and 140-405 units per hectare as set out in Table 3.2 of the London Plan for sites with a PTAL of 4 and a central character setting. The number of units per hectare and height of the building also exceeds the threshold for increased scrutiny of design quality set out in the Mayor's intend to publish London Plan. In view of the location of the site within the opportunity area, transport accessibility and optimisation of land use to deliver affordable housing, the proposed density would be supported, subject to exceptional design. In line with Policy D4 of the Mayor's intend

to publish London Plan, a management plan detailing day-to-day servicing and delivery arrangements and long-term maintenance implications, as detailed in paragraph 3.4.9, will be required. The agreed maintenance plan should be secured by condition as part of any permission.

Site layout

29 The layout approach of positioning blocks to create frontages along the river edge and Hancock Road, while also defining new public routes through the site is supported. The utilisation of the site's significant level change to contain refuse/servicing and car parking within a basement level is welcomed. This helps to activate most public facing edges, which also creates a level connection to the future bridge link.

Massing, scale and height

30 The principle of including tall building(s) on this site to optimise housing delivery and to enable the quantum of public realm and routes through the site to be maximised is supported, as this would be consistent with emerging development to the north and along Stratford High Street to the north east. Moreover, the site is within an opportunity area. It is, however, acknowledged that the site, though located in an Opportunity Area, does not fall within a location identified as being suitable for tall buildings in local development plan policy. Notwithstanding this, Policy D9 of the Mayor's intend to publish London Plan at paragraph 3.9.3 states that in "*Opportunity Areas, the threshold for what constitutes a tall building should relate to the evolving (not just the existing) context*". In view of this, and taking into account the existing and emerging context of tall buildings, and the limited impact on heritage assets identified above, GLA officers are of the view that the principle of tall buildings in this location is appropriate.

31 However, it was discussed at pre-application stage that the scheme would benefit from further variation in the height of the three tall buildings, to create a clearer distinction between each tower and avoid coalescence between the blocks in townscape views. The current scheme proposes three blocks at the same 26 storey height, whereas stepping up in height towards the northern end of the site could to introduce a clearer hierarchy between the towers. GLA officers would welcome further discussion on the rationale behind the uniform heights approach in townscape terms and its relationship with existing and emerging context.

Architecture

32 Notwithstanding the above, the efficient footprint of each tower creates slender building forms and an elegant profile in longer range views. The use of materials that reflect the surrounding context and character are supported. The LLDC's planning officers should seek to secure a high quality of design through conditions linked to facade details and material specification.

Residential quality

33 All units would meet the internal space standards contained within the London Plan, the Mayor's intend to publish London Plan and the Housing SPG. Floor to ceiling heights are proposed to be at least 2.5 metres and the provision of dual aspect units has been maximised (74%), with no solely north or A12-facing single-aspect units. Each

of the proposed units would have access to private amenity space in the form of balconies and winter gardens at the lower levels.

34 As recommended at the pre-application stage, the application demonstrates how mitigation measures have been designed into the scheme to ensure that residential amenity would not be negatively impacted by any future industrial use and, in accordance with Policy D13 of the Mayor's intend to publish London Plan, that the residential component of the scheme is designed so that industrial activities may continue without prejudice. The application is accompanied by an Environmental Statement, which sets out satisfactory mitigation measures to address expected noise and vibration their impact on the scheme's commercial and residential users and neighbouring properties. These mitigation measures should be secured by planning condition.

35 The proposal responds positively to London Plan Policy 3.8 and Policy D7 of the Mayor's intend to publish London Plan and meets Building Regulation requirement M4 (2) 'accessible and adaptable dwellings' and Building Regulation requirement M4 (3) 'wheelchair user dwellings'. Additionally, the design of the proposed public realm makes it accessible and safe for both residents and visitors in line with Policies D5, D8 and T2 of the Mayor's intend to publish London Plan.

36 To ensure the safety of future occupants, a fire safety statement prepared by Hoare Lea has been submitted with the application in accordance with Policy D12 of the Mayor's intend to publish London Plan.

37 In accordance with London Plan Policy 3.6 and Policy S4 of the Mayor's intend to publish London Plan, development proposals that include housing should provide play space for children based on the short and long-term needs of the expected child population generated by the scheme. The total play space required, using the GLA's 2019 child play space calculator, is 1,441 sq.m., of which 649 sq.m., 454 sq.m. and 202 sq.m. are required for the Under 5s, 5-11 year olds and 12-15 year olds respectively. The development is proposing 1,378 sq.m. of play space, resulting in a shortfall of approximately 63 sq.m. for children over 15 years old. The proposed play space would also be well-distributed across the site and would not be segregated by tenure, which accords with Policy S4 of the Mayor's intend to publish London Plan. Part of the proposed play space is situated next to the A12 at a lower level and at the pre-application stage GLA officers recommended that the applicant demonstrate the suitability of this space for play given the associated noise and air quality issues. To address these concerns, the application proposes the planting of tall mature non-deciduous, river native trees up against the A12 wall to act as a buffer and the erection of a fence. These measures would address GLA officers' concerns and should be robustly secured by the LLDC. Regarding the shortfall, the applicant has indicated that the projected shortfall can be accommodated in the nearby parks; this is acceptable, subject to demonstrating that the routes to these parks are safe and easily accessible and securing any applicable contributions to the local planning authority.

Environment

38 Full details of the outstanding issues relating to Environment have been provided directly to the applicant and LLDC.

Energy strategy

39 The applicant has submitted an energy assessment in accordance with London Plan Policy 5.2 and Policy SI1 of the Mayor's intend to publish London Plan. An on-site reduction of 172 tonnes of carbon dioxide per year in regulated emissions compared to a 2013 Building Regulations compliant development is expected for the domestic element, equivalent to an overall saving of 36%, which does not meet the required zero carbon target. For the non-domestic element, a reduction of 34 tonnes of carbon dioxide per year and an overall saving of 43% is expected. Information is required relating to overheating and connection to the Phase 1 heat network. In addition, plans for the decarbonisation of the Phase 1 heat network should be submitted and the maximisation of the provision of PV cells should be explored. An estimated payment of £549,000 is to be made towards the borough's offset fund and should be secured in the Section 106 agreement. Detailed energy comments have been provided directly to the applicant.

Flood risk, sustainable drainage and water efficiency

40 The site is in Flood Zone 3. A Flood Risk Assessment (FRA) has been submitted as required under the NPPF, which considers the risk of flooding from a range of sources. When mitigation measures are considered, the residual flood risk to the site is low. The FRA, however, erroneously claims that the nearest reservoir is the Brent Reservoir in north west London. This error should be corrected and the risk of flooding from reservoirs reassessed. The proposed flood warning and evacuation plan should be secured by appropriate condition. In view of the above, the approach to flood risk management for the proposed development complies with London Plan Policy 5.12 and Policy SI12 of the Mayor's intend to publish London Plan.

41 In terms of surface water management, the drainage strategy proposes blue roofs on tower buildings and on the podium level as the main SuDS measures. Water is then pumped into a public combined sewer. This approach does not satisfy the requirements of London Plan Policy 5.13 and Policy SI13 of the Mayor's intend to publish London Plan. The applicant should seek to discharge site runoff by gravity into the adjacent canal (with approval from the Canal and River Trust) to avoid pumping and reduce the load on the public sewer. Further information should also be provided to substantiate the chosen discharge rate.

42 The sustainability statement states that the proposed dwellings would have a maximum indoor water consumption of 105 l/person/day, in line with the optional standard in Part G of the Building Regulations, and compliant with Policy 5.15 of the London Plan and Policy SI5 of the Mayor's intend to publish London Plan. BREEAM 'Very Good' is targeted for the shell of the non-residential component of the development; but it is noted that water consumption is excluded as fit-out is to be done separately and the maximum number of other available water credits for the shell is achieved. The applicant, however, should consider water harvesting and reuse to reduce consumption of wholesome water across the entire development site. This can be integrated with the surface water drainage system to provide a dual benefit.

Urban greening

43 The applicant should calculate the proposed development's Urban Greening Factor, as set out in Policy G5 of the Mayor's intend to publish London Plan and aim to achieve the specified target of 0.4 for predominantly residential developments.

Transport

Trip generation and impact

44 The trip generation assessment is acceptable. Step-free access and other improvements are planned for Bromley-by-Bow station to address demand from development in this area. Section 106 contributions have already been received as part of a funding package for these works and further discussion with TfL relating to a proportionate contribution from this scheme to assist with the timely delivery of the station upgrade would be welcomed.

Access

45 The application proposes a new vehicular access between Global Approach and an existing access. The new access would require the modification of TfL infrastructure in the form of parapet rails along the footway of the A12 and this would require technical approval from TfL, which should be agreed before determination of this case. The applicant has agreed to produce a Stage 1 Road Safety Audit (RSA) for the proposed new vehicular access. This should be shared with TfL so that any issues can be addressed in line with the Mayor's Vision Zero agenda.

Healthy streets

46 The transport assessment includes an active travel zone (ATZ) assessment, which has been produced in line with TfL's updated guidance, and is welcomed. The development proposes to limit vehicles using the public realm to reduce conflicts between different modes and prioritise pedestrians and cyclists including a central pedestrian ramp that is not permitted for use by vehicles. This is in line with Vision Zero and is therefore strongly supported. Bolinder Way would be shared by pedestrians, cyclists and servicing vehicles and all Blue Badge parking provided in the basement to prevent the public realm becoming car dominated. This is supported. The proposed development has been adequately future-proofed to ensure integration with the Bromley-by-Bow and Marshgate Lane public realm and transport link enhancements in compliance with Policy T2 and objective GG3 of the Mayor's intend to publish London Plan. The land safeguarded in the extant permission to facilitate landing points from the bridges required to access the Sugar House Lane/Strand East Development immediately east across the River Lea should be similarly safeguarded as part of any new permission.

Car and cycle parking

47 The proposed car-free development, apart from 13 Blue Badge spaces, is supported in line with Policy T6 of the Mayor's intend to publish London Plan. Active electrical vehicle charging points (EVCP) should be provided for at least 20% of disabled spaces and passive provision for the remaining disabled spaces. This should be secured by condition to comply with Policy T6.1 of the Mayor's intend to publish London Plan. Electrical vehicle charging points should also be provided for the five loading bays (3 dedicated to vans and 2 for cars) proposed within the basement car park. The application is supported by a parking design and management plan (PDMP), which should be secured by condition and discharged in consultation with TfL prior to the Mayor's Stage 2 determination.

48 The development proposes 794 residential cycle store spaces and 54 commercial store spaces at lower ground level. This proposed provision complies with the minimum standards set out in the Mayor's intend to publish London Plan and is supported. A total of 20 short-stay cycle parking spaces are proposed in the public realm. To ensure that the final cycle design accords with the guidance set out in the London Cycling Design Standards (LCDS), LLDC officers should secure detailed drawings of the cycle parking layout. The nearest cycle hire docking station is 200 metres to the west; however, it is separated by the A12, which pedestrians and cyclists are unable to cross. As such, a cycle hire docking station space has been identified and safeguarded within the public realm of the site and this should be secured and funded through any S106 agreement in line with Policy T3 of the Mayor's intend to publish London Plan.

Transport-related plans

49 A draft construction logistics plan (CLP) and construction management plan (CMP) have been submitted. A full delivery and servicing plan (DSP) and construction logistics plan (CLP), both produced in accordance with TfL best practice guidance, should be secured by condition for approval in consultation with TfL. The CLP should be in place before construction commences and the DSP prior to occupation. An outline travel plan (TP) has been submitted as part of the transport assessment, which should be secured, implemented and monitored as part of any Section 106 agreement.

Local planning authority's position

50 London Legacy Development Corporation planning officers are currently assessing the application. It is understood that there is concern in relation to amount of development proposed.

Legal considerations

51 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Corporation must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged or direct the Corporation under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

52 There are no financial considerations at this stage.

Conclusion

53 London Plan and Mayor's intend to publish London Plan policies on Opportunity Areas, employment land, housing, affordable housing, heritage, urban design, inclusive access, environment and transport are relevant to this application. Whilst the principle of

the development is supported, the application does not fully comply with the London Plan and Mayor's intend to publish London Plan. The following changes might, however, lead to the application becoming fully compliant with the London Plan and Mayor's intend to publish London Plan:

- **Principle of development:** The proposed scheme would deliver an optimised residential-led mixed use scheme within an opportunity area and is strongly supported in strategic terms in line with London Plan Policies 2.13 and 3.3 and Policies SD1, E7C and H1 and objective GG2 of the Mayor's intend to publish London Plan.
- **Affordable housing:** 50% by habitable room, without public subsidy, with a 51%:49% affordable rent-intermediate tenure mix, which is strongly supported and would qualify for the Fast Track Route subject to LLDC's approval of the tenure mix.
- **Heritage and urban design:** The principle of tall buildings and high density development is supported taking into account the opportunity area location, the existing and emerging context of tall buildings, high residential quality and less than substantial harm to a heritage asset, which would be outweighed by the expected public benefits. However, the scheme would benefit from further variation in heights, which should be explored further.
- **Environment:** Further information is required relating to overheating and connection to the Phase 1 heat network. In addition, plans for the decarbonisation of the Phase 1 heat network should be submitted and the maximisation of the provision of PV cells should be explored. The applicant should revise the SuDS as recommended in paragraph.
- **Transport:** The following should be secured via planning condition or the Section 106 agreement as recommended in paragraphs requested in this report -- a minimum 20% active charging point provision and 80% passive charging point provision for the proposed disabled bays and the provision of active charging point provision for all operational parking spaces; detailed drawings of the long-stay cycle parking; detailed construction logistics, delivery and servicing plans and parking design and management plans; and a travel plan. In addition, the submission of a Stage 1 RSA to TfL for review and confirmation of TfL Structures technical approval for the access proposed.

For further information, contact the GLA Planning Team:

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